

HOUSE No. 1426**The Commonwealth of Massachusetts**

PRESENTED BY:

Manny Cruz and Aaron L. Saunders

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to provide green and healthy public colleges and universities and address their deferred maintenance needs.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Manny Cruz</i>	<i>7th Essex</i>	<i>1/17/2025</i>
<i>Lindsay N. Sabadosa</i>	<i>1st Hampshire</i>	<i>2/3/2025</i>
<i>Vanna Howard</i>	<i>17th Middlesex</i>	<i>2/3/2025</i>
<i>Michael D. Brady</i>	<i>Second Plymouth and Norfolk</i>	<i>2/3/2025</i>
<i>Christopher Richard Flanagan</i>	<i>1st Barnstable</i>	<i>2/3/2025</i>
<i>Rodney M. Elliott</i>	<i>16th Middlesex</i>	<i>2/3/2025</i>
<i>Danillo A. Sena</i>	<i>37th Middlesex</i>	<i>2/3/2025</i>
<i>Erika Uyterhoeven</i>	<i>27th Middlesex</i>	<i>2/11/2025</i>
<i>Jacob R. Oliveira</i>	<i>Hampden, Hampshire and Worcester</i>	<i>2/11/2025</i>
<i>Natalie M. Higgins</i>	<i>4th Worcester</i>	<i>2/11/2025</i>
<i>James K. Hawkins</i>	<i>2nd Bristol</i>	<i>2/11/2025</i>
<i>Mike Connolly</i>	<i>26th Middlesex</i>	<i>2/13/2025</i>
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>2/28/2025</i>
<i>David Henry Argosky LeBoeuf</i>	<i>17th Worcester</i>	<i>3/10/2025</i>
<i>Margaret R. Scarsdale</i>	<i>1st Middlesex</i>	<i>3/31/2025</i>
<i>Tommy Vitolo</i>	<i>15th Norfolk</i>	<i>4/7/2025</i>
<i>Marjorie C. Decker</i>	<i>25th Middlesex</i>	<i>4/9/2025</i>

<i>Christine P. Barber</i>	<i>34th Middlesex</i>	<i>5/12/2025</i>
<i>Sean Garballey</i>	<i>23rd Middlesex</i>	<i>5/29/2025</i>

HOUSE No. 1426

By Representatives Cruz of Salem and Saunders of Belchertown, a petition (accompanied by bill, House, No. 1426) of Manny Cruz, Lindsay N. Sabadosa and others for legislation to address the deferred maintenance needs of public institutions of higher education and for the creation of a green and healthy public college and university building planning commission (including members of the General Court). Higher Education.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to provide green and healthy public colleges and universities and address their deferred maintenance needs.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 15A of the General Laws is hereby amended by inserting, after
2 section 47, the following section:-

3 Section 48. Green and Healthy Public College and University Building Planning
4 Commission

5 (a) There shall be a Green and Healthy Public College and University Building Planning
6 Commission, which shall consist of: the commissioner of higher education, who shall serve as
7 chair, or a designee; the commissioner of public health, who shall serve as vice chair, or a
8 designee; the secretary of energy and environmental affairs, who shall serve as vice chair, or a
9 designee; the speaker of the house of representatives, or a designee; the president of the senate,
10 or a designee; the minority leader of the house of representatives, or a designee; the minority

11 leader of the senate, or a designee; the chairs of the joint committee on ways and means, or their
12 designees; the chairs of the joint committee on higher education, or their designees; the president
13 of the university of Massachusetts, or a designee; the executive director of the Massachusetts
14 Association of Community Colleges, or a designee; the executive officer of the Massachusetts
15 State University Council of Presidents, or a designee; 4 representatives of the Massachusetts
16 Teachers Association, 1 of whom shall be employed by the university of Massachusetts, 1 of
17 whom shall be employed by a state university, and 1 of whom shall be employed by a
18 community college; a representative of the American Federation of Teachers, Massachusetts; a
19 representative of the American Institute of Architects-Massachusetts; a representative of the
20 Massachusetts State Building Trades Council; a representative of the Massachusetts Coalition for
21 Occupational Safety and Health; and a representative of the Massachusetts Department of Higher
22 Education's Student Advisory Council.

23 (b) The commission shall assess and make recommendations for public higher education
24 buildings relative to energy efficiency, spatial adequacy, life safety, accessibility, indoor
25 environmental quality and public health. The commission shall be established not less than every
26 10 years to monitor the implementation of its recommendations, and to conduct a new
27 assessment if determined to be necessary by the commission.

28 (c) The commission shall determine the means of conducting its work, which shall
29 include, but not be limited to:

30 (1) assessing the extent to which public higher education buildings in the commonwealth
31 provide students a healthy environment that is conducive to learning while efficiently using
32 energy and resources and limiting exposure to toxic building materials, referred to in this section

as “green and healthy public higher education buildings”. Factors to be considered shall include, but not be limited to: (i) protection against infectious disease; (ii) sufficient ventilation and air circulation, including adequate outdoor air exchange, filtration and circulation; (iii) healthy indoor air quality, including limits on pollutants, exposure to toxic substances, chemical emissions and vapor intrusion; (iv) adequate availability of clean and safe water; (v) appropriate thermal comfort, humidity and temperature controls; (vi) protections against pests with effective use of integrated pest management; (vii) limits on pollutants, dust, mold and allergens; (viii)

appropriate artificial lighting and plentiful natural light; (ix) proper acoustic and noise control; (x) proper maintenance of mechanical systems; (xi) design that promotes physical activity and meets accessibility standards; (xii) opportunities to increase energy efficiency and efficient use of resources including low-flow fixtures; (xiii) opportunities to shift to fossil-free fuels; (xiv) proper access to greenspace; and (xv) opportunities for architectural design to enhance occupant safety. The assessment may rely on existing data or be objectively measured. The assessment shall include a public searchable online dashboard with the findings for all public higher education buildings in the commonwealth; and

(2) developing standards for green and healthy public higher education buildings.

(d) Members of the commission shall not receive compensation for their services but may receive reimbursement for the reasonable expenses incurred in carrying out their responsibilities as members of the commission. The commissioner of higher education shall furnish reasonable staff and other support for the work of the commission.

SECTION 2. Chapter 29 of the General Laws, as appearing in the 2022 Official Edition, is hereby amended by inserting after section 2AAAAAA the following 2 sections:-

55 Section 2BBBBBB. Public College and University Capital Debt Relief Fund

56 (a) There shall be a separate fund, to be administered by the board of higher education,
57 which shall be known as the Public College and University Capital Debt Relief Fund. The fund
58 shall be credited with: (i) appropriations, bond proceeds or other money authorized or transferred
59 by the general court and specifically designated to be credited to the fund; (ii) funds from public
60 and private sources, including, but not limited to gifts, grants and donations; and (iii) any interest
61 earned on such funds. Amounts credited to the fund shall be used, without further appropriation,
62 to provide financial relief for debt service associated with capital construction projects at
63 commonwealth institutions of public higher education, as defined in section 5 of chapter 15A;
64 provided, however, that, students shall not be charged fees for that portion of the debt service
65 paid out of the fund. The board of higher education, in consultation with the trustees of the
66 university of Massachusetts, shall determine the amounts to be allocated to each public higher
67 education institution to cover debt service obligations; and provided further, that funds allocated
68 from this reserve shall only be used to cover said debt service obligations and that public higher
69 education institutions shall invest funds made available by relieving debt service obligations for
70 hiring full-time faculty and staff, providing pay increases or other benefits for adjunct faculty,
71 and in other student success programs including, but not limited to, additional supports for low-
72 income students and students of color, using methods that improve the college experience and
73 graduation rates.

74 Section 2CCCCCC. Green and Healthy Public College and University Building Fund

75 (a) There shall be a separate fund, to be administered by the board of higher education,
76 which shall be known as the Green and Healthy Public College and University Building Fund.

77 The fund shall be credited with: (i) appropriations, bond proceeds or other money authorized or
78 transferred by the general court and specifically designated to be credited to the fund; (ii) funds
79 from public and private sources, including, but not limited to gifts, grants and donations; and (iii)
80 any interest earned on such funds. Amounts credited to the fund shall be used, without further
81 appropriation,

82 to fund and implement the recommendations of the Green and Healthy Public College
83 and University Building Planning Commission, established in section 46 of chapter 15A, for the
84 renovation and rehabilitation of existing buildings and new building construction to meet the
85 recommended green and healthy public higher education buildings standards.

86 SECTION 3. Notwithstanding any general or special law, rule or regulation to the
87 contrary, after January 1, 2027, the costs associated with the construction of an academic,
88 administrative or auxiliary building at a commonwealth institution of public higher education, as
89 defined in section 5 of chapter 15A of the General Laws, shall be paid in full by the
90 commonwealth from state funds or eligible federal funds and shall not be paid for with any
91 public higher education institutional funds or financed through public building authorities or
92 private entities; provided, that the costs associated with deferred maintenance and the
93 assessment, upgrade or repair of any existing academic, administrative or auxiliary building at an
94 institution of public higher education that is under the control and supervision of the department
95 of capital asset management and maintenance shall be paid in full by the commonwealth.

96 SECTION 4. The Green and Healthy Public College and University Building Planning
97 Commission, as established in section 48 of chapter 15A of the General Laws, shall create and
98 recommend a plan for all existing and new public higher education buildings to equitably meet

99 the standards for green and healthy public higher education buildings developed pursuant to
100 paragraph (c) of section 48 of said chapter 15A, by 2037. The commission shall issue
101 recommendations, including an analysis that summarizes the findings of its assessment of public
102 higher education buildings in the commonwealth, for implementing green and healthy public
103 higher education buildings standards for cost-effective renovation and rehabilitation of existing
104 buildings and for new building construction, and a plan for implementing these standards for all
105 public higher education buildings, by 2037. The recommendations shall prioritize addressing
106 buildings with the greatest needs first. The recommendations shall consider the unique
107 environmental conditions of buildings located in urban, industrial, and other areas facing
108 particular site challenges and shall consider the need to address historic patterns of injustice and
109 inequity in public higher education. The recommendations shall estimate the cost of bringing all
110 buildings into compliance with the standards by 2037, including the ongoing cost of maintenance
111 and repair, and recommend a plan to fund these costs, and shall also compare those costs with
112 long-term savings in health and medical costs, energy costs, maintenance, life cycle assessment
113 and other savings, and the growth in economic activity of bringing buildings to the standards,
114 including increased jobs and job training. The first plan of the commission shall be published and
115 submitted to the joint committee on ways and means and the joint committee on higher education
116 not later than December 31, 2028. Prior to completing its assessment and issuing its
117 recommendations, the commission shall conduct public hearings at every commonwealth
118 institution of public higher education and shall consult with employee organizations, as defined
119 in chapter 150E, representing employees at each institution of public higher education.